

HOUSE No. 3584

The Commonwealth of Massachusetts

PRESENTED BY:

Bud L. Williams

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent gas expansion to protect climate, community health and safety..

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/14/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/17/2025</i>

HOUSE No. 3584

By Representative Williams of Springfield, a petition (accompanied by bill, House, No. 3584) of Bud L. Williams for legislation to further regulate gas facilities. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent gas expansion to protect climate, community health and safety..

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 69J of said chapter 164, as so appearing, is hereby further amended
2 by inserting, at the end thereof the following: -

3 No new gas facility or expansion of an existing gas facility, any part of which falls within
4 a 5 mile radius of an environmental justice neighborhood, shall be approved unless required for
5 the safety of the public.

6 SECTION 2: Section 69K of said chapter 164, as so appearing, is hereby amended by
7 inserting, at the end thereof the following: -

8 No new gas facility, or expansion of an existing gas facility, any part of which falls
9 within a 5 mile radius of an environmental justice neighborhood, shall be granted a petition for a
10 certificate unless required for the safety of the public.

SECTION 3. Section 69J ¼ of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new gas generating facility or expansion of an existing gas generating facility, any part of which falls within a 5 mile radius of an environmental justice neighborhood, shall be approved.

SECTION 4. Section 69K ½ of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new gas generating facility or expansion of an existing gas generating facility, within a 5 mile radius of an environmental justice community, shall be granted a petition for a certificate.

REDLINED against 193 session's H.3237/S.2135

An Act establishing a moratorium on new gas system expansion to prevent gas expansion to protect climate, community health and safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

SECTION 1: Section 69J of said chapter 164, as so appearing, is hereby further amended by inserting, at the end thereof the following: -

No new gas facility shall be approved, and nor expansion of an existing gas facility, any part of which falls within a 5 mile radius of an environmental justice neighborhood, shall be approved unless required for the safety of the public.

SECTION 2: Section 69K of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new gas facility, or expansion of an existing gas facility, any part of which falls within a 5 mile radius of an environmental justice neighborhood, shall be granted a petition for a certificate, and no expansion of an existing gas facility shall be granted a petition for a certificate unless required for the safety of the public.

SECTION 3. Section 69J $\frac{1}{4}$ of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new gas generating facility or expansion of an existing gas generating facility, any part of which falls within a 5 mile radius of an environmental justice neighborhood, shall be approved.

SECTION 4. Section 69K $\frac{1}{2}$ of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new gas generating facility or expansion of an existing gas generating facility, within a 5 mile radius of an environmental justice community, shall be granted a petition for a certificate.

SECTION 3: Section 30 of said chapter 164, as so appearing, is amended by striking out, in line 1 the words “a gas or” and inserting in place thereof the following word: -”an”.

SECTION 4: Said chapter 164, as so appearing, is hereby further amended by inserting after section 86 the following section:-

51 Section 86A. A town where no gas company exists in active operation, or where no
52 person owns or operates the manufacture and sale of gas, no gas company, nor any other person,
53 shall dig up and open the streets, lanes, and highways of such town in order to construct a gas
54 facility.